

COMMITTEE ON TRANSPORTATION & INFRASTRUCTURE
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1232
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-7902, Arizona Revised Statutes, is amended to
3 read:

4 28-7902. Outdoor advertising authorized

5 A. The following outdoor advertising may be placed or maintained
6 along an interstate, secondary or primary system within six hundred sixty
7 feet of the edge of the right-of-way:

8 1. Directional or other official signs or notices that are required
9 or authorized by law, including signs pertaining to natural wonders and
10 scenic and historic attractions.

11 2. Signs, displays and devices that are located on the premises of
12 the activity that they advertise. This paragraph applies to any sign that
13 is located on the premises of a comprehensive development that the sign
14 advertises if the placement of the sign does not cause a reduction of
15 federal aid highway monies pursuant to 23 United States Code section 131.
16 For the purposes of this paragraph, "activity" means the active use or
17 collective uses of the premises.

18 3. Signs, displays and devices advertising the sale or lease of the
19 property on which they are located.

20 4. Signs, displays and devices lawfully placed after April 1, 1970
21 in business areas.

22 5. Signs, displays and devices lawfully placed after either:

23 (a) July 1, 1974 in zoned or unzoned commercial or industrial areas
24 inside municipal limits.

25 (b) April 1, 1972 in unzoned commercial or industrial areas outside
26 municipal limits.

1 6. Signs, displays and devices that are lawfully existing on
2 April 1, 1970 and that are located in business areas and in zoned
3 commercial or industrial areas outside municipal limits.

4 7. Signs, displays and devices lawfully existing on either:

5 (a) July 1, 1974 that are located in zoned or unzoned commercial or
6 industrial areas inside municipal limits.

7 (b) April 1, 1972 in unzoned commercial or industrial areas outside
8 municipal limits.

9 8. Nonconforming tourist related advertising displays that are
10 lawfully erected and in existence on May 5, 1976, that are located in
11 defined hardship areas, that provide specific directional information to
12 the traveling public and that are approved by the United States secretary
13 of transportation pursuant to 23 United States Code section 131(o).

14 9. A sign located in a charter city adjacent to an interstate
15 highway with a changing message for identification of businesses that are
16 located on separate contiguous parcels and that are part of a single
17 development approved by a city council as part of a development agreement
18 entered into before April 22, 1990. The changing message may not contain
19 words or phrases that continuously travel or scroll in a manner that
20 presents a message longer than may be displayed on the sign at one instant
21 in time. The director may adopt rules governing the interval within which
22 a message may be displayed or changed. This paragraph does not alter,
23 change or affect any other statute, rule, regulation, policy or
24 interpretation concerning the use of signs with changing messages or the
25 ownership of property on which the signs are located.

26 10. ~~SIGNS, DISPLAYS AND DEVICES [THAT ARE PLACED NOT LESS THAN ONE~~
27 ~~THOUSAND FEET FROM A RESIDENCE AND]~~ THAT ARE LAWFULLY PLACED ON A PROPERTY
28 THAT MEETS ALL OF THE FOLLOWING:

29 (a) IS LOCATED WITHIN A MILITARY AIRPORT AND ANCILLARY MILITARY
30 FACILITY OVERLAY ZONING DISTRICT.

31 (b) HAS BEEN ~~[ISSUED]~~ [GRANTED] A MILITARY COMPATIBILITY PERMIT
32 THAT ALLOWS COMMERCIAL OR INDUSTRIAL USES AND THAT WAS NOT ~~[ISSUED]~~
33 [GRANTED] PRIMARILY TO ALLOW OUTDOOR ADVERTISING STRUCTURES.

34 (c) IS LOCATED IN A HIGH NOISE OR ACCIDENT POTENTIAL ZONE AS
35 DEFINED IN SECTION 28-8461, PARAGRAPH 9, SUBDIVISION (a).

36 [(d) HAS BEEN APPROVED THROUGH A PUBLIC HEARING HELD BY THE LOCAL
37 JURISDICTION OR COUNTY.]

38 B. Outdoor advertising authorized under subsection A, paragraphs 1,
39 4 and 5 shall conform with standards contained and shall bear permits
40 required in rules adopted by the director under this article, except that
41 the authorized outdoor advertising along highways in the secondary system
42 that are not state highways need only bear permits required by the
43 responsible county or municipal authority.

44 C. Outdoor advertising authorized under subsection A, paragraphs 6
45 and 7 need not conform to standards contained but shall bear permits
46 required in rules adopted by the director under this article, except that
47 the authorized outdoor advertising along highways in the secondary system

1 that are not state highways need only bear permits required by the
2 responsible county or municipal authority.

3 D. If preservation would be consistent with this article, signs may
4 be preserved or maintained if they were lawfully in existence on October
5 22, 1965 and if the director determines, subject to the approval of the
6 United States secretary of transportation as provided for by 23 United
7 States Code section 131(c), that they are landmark signs, including signs
8 on farm structures or natural surfaces, of historic or artistic
9 significance.

10 E. Outdoor advertising that conforms to standards and bears a
11 permit pursuant to subsection B or C of this section may include
12 electronic outdoor advertising only if the electronic outdoor advertising
13 meets the following requirements:

14 1. The electronic outdoor advertising does not contain any form of
15 animation and remains static for at least eight seconds with a transition
16 time of no greater than two seconds.

17 2. Except as provided in subsection H or I of this section, the
18 electronic outdoor advertising is located within the area with the
19 following coordinates:

20 Beginning at state route 95 at mile marker two hundred
21 fifty in Bullhead City, to all points within this state that
22 are within a radius of forty miles from that location, except
23 excluding state route 95 south of interstate 40 and any area
24 east of state route 93 from mile marker forty-two to the
25 Hoover dam, and also including latitude 33.9 north, longitude
26 114.5 west, hence due east to latitude 33.9 north, longitude
27 112.25 west, hence following the circumference of a circle
28 with a radius of seventy-five miles from the coordinates of
29 the discovery channel telescope to latitude 33.66 north,
30 longitude 111.23 west, hence due south to latitude 33.46
31 north, longitude 111.23 west, hence following the
32 circumference of a circle with a radius of seventy-five miles
33 from the coordinates of the Mount Lemmon observatory to
34 latitude 33.02 north, longitude 111.91 west, hence following
35 the circumference of a circle with a radius of seventy-five
36 miles from the coordinates of Kitt Peak observatory to
37 latitude 32.6 north, longitude 112.65 west, hence due west to
38 latitude 32.6 north, longitude 114.802 west, and hence north
39 along the Colorado river to the point of beginning.

40 3. Except as provided in paragraph 4 of this subsection, from
41 sunset until 11:00 P.M., the dimmer for electronic outdoor advertising
42 signs, displays and devices shall not be set to exceed three hundred
43 forty-two NITS in full white mode for signs that are smaller than six
44 hundred seventy-two square feet in area and three hundred NITS in full
45 white mode for signs that are equal to or larger than six hundred
46 seventy-two square feet in area.

1 4. For coordinates beginning at state route 95 at mile marker two
2 hundred fifty in Bullhead City, to all points within this state that are
3 within a radius of forty miles from that location from sunset until
4 11:00 P.M., the dimmer for electronic outdoor advertising signs, displays
5 and devices shall not be set to exceed two hundred NITS in full white mode
6 for all signs.

7 5. From 11:00 P.M. until sunrise, illumination shall be
8 extinguished and electronic outdoor advertising signs, displays and
9 devices shall be equipped with an automatic device to ensure compliance
10 with this paragraph, except for amber alerts and other governmental
11 emergencies. The automatic device shall have the ability to dim the
12 display through a photoelectric sensor that detects ambient light levels
13 and adjusts the display intensity automatically to ensure the maximum NIT
14 levels are enforced.

15 6. The electronic outdoor advertising shall comply with the size
16 and spacing limitations prescribed in section 28-7905, and for coordinates
17 beginning at state route 95 at mile marker two hundred fifty in Bullhead
18 City, to all points within this state that are within a radius of forty
19 miles from that location, the number of electronic outdoor advertising
20 signs, displays and devices shall not exceed thirty-five.

21 F. The director shall prepare a pictorial representation of the
22 coordinates described in subsection E, paragraph 2 of this section. The
23 director shall post the pictorial representation on the department's
24 website.

25 G. The owner of any outdoor advertising that is within the area
26 described in subsection E, paragraph 2 of this section, that bears a
27 permit pursuant to subsection B or C of this section and that is converted
28 to electronic outdoor advertising shall notify the department of the
29 face-type status change. The notice shall include a certification that
30 the sign remains in compliance with this section. The department shall
31 maintain the face-type status change documents in its records. After May
32 9, 2012, the conversion of outdoor advertising to electronic outdoor
33 advertising is only allowed in the area described in subsection E,
34 paragraph 2 of this section.

35 H. Electronic outdoor advertising is deemed to have legal
36 nonconforming status for the purposes of state law, including for the
37 purposes of any permits and approvals issued by the department, if both of
38 the following apply:

39 1. The electronic outdoor advertising is both operational and bears
40 a permit pursuant to subsection B or C of this section before May 9, 2012.

41 2. The electronic outdoor advertising is not located within the
42 area described in subsection E, paragraph 2 of this section.

43 I. Electronic outdoor advertising in existence and operational as
44 of May 9, 2012 is deemed to have legal conforming status for the purposes
45 of state law, including for the purposes of any permits and approvals
46 issued by the department if both of the following apply:

1 1. The electronic outdoor advertising bears a permit pursuant to
2 subsection B or C of this section.

3 2. The electronic outdoor advertising is located within the area
4 described in subsection E, paragraph 2 of this section.

5 J. The electronic outdoor advertising that is described in
6 subsection H or I of this section is subject to the requirements
7 prescribed by subsection E, paragraphs 1, 3, 4 and 5.

8 K. A city, town or county shall not issue a permit for conversion
9 of an existing outdoor advertising use to an electronic outdoor
10 advertising use after May 9, 2012 if the existing outdoor advertising is
11 not located in the area described in subsection E, paragraph 2 of this
12 section.

13 L. This section does not prevent a city, town or county from
14 enforcing or enacting an ordinance regulating outdoor advertising that is
15 authorized by subsection E of this section, including the lighting of the
16 outdoor advertising. The city, town or county may enact an ordinance that
17 is more restrictive than this section but not less restrictive than this
18 section.

19 Enroll and engross to conform

20 Amend title to conform

And, as so amended, it do pass

LEO BIASIUCCI
CHAIRMAN

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